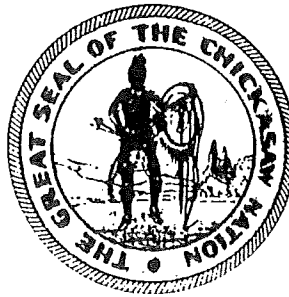


PASSED

11th Legislature



Bill No. 11-012

To codify the laws enacted by the Legislature of the Chickasaw Nation; to provide new, revised and continuing provisions; to provide for an effective date for the Code of Tribal Laws of the Chickasaw Nation, and for other purposes.

IN THE CHICKASAW TRIBAL LEGISLATURE

Mr. Robert STEPHENS and Mrs. Rena DUNCAN introduced the following bill, which was referred to the Legislative Committee.

A BILL

To adopt a Code of Tribal Laws enacted by the Legislature of the Chickasaw Nation for the Chickasaw Nation, and for other purposes.

Be it enacted by the tribal legislature of the Chickasaw Nation assembled, that this Act may be cited as the "Code of the Chickasaw Nation Act of 1994."

SEC. 2. The legislature finds that -

(1) A need exists for the Chickasaw Tribal Legislature to adopt a code of laws enacted by the Legislature of the Chickasaw Nation for the Chickasaw Nation.

SEC.3. For the purpose of this Act-

(1) "The Chickasaw Nation means the tribe of Indians located within the boundaries set forth in the Constitution of

the Chickasaw Nation, being duly recognized by the Secretary of the United States Department of the Interior as a self-governing, sovereign government;

(2) "Constitution" means the Constitution of the Chickasaw Nation as ratified by the voters of the Chickasaw Nation on August 27, 1983;

(3) "Chickasaw Tribal Legislature" or "Legislature" means the legislative branch of the Chickasaw Nation tribal government as created and empowered by Articles V, VI, VII, VIII, IX and XVIII of the Constitution;

(4) "Code", "Chickasaw Nation Code", "Chickasaw Code" or "Tribal Code" or means the Code adopted by this Act;

(5) "Effective date" means the date that the Code of Tribal Laws shall be effective, as included in this Act;

(6) "Act" means this Act, as identified in Section 1;

(7) "Enactment", "act," "resolution" or "law" means all actions taken by the legislature which may have the full force and effect of law.

SEC. 4. The basis for authority of this Act is Article VI, Section 1, of the Constitution, wherein the Legislature is granted the legislative authority of the Chickasaw Nation, and in Article VII, Section 4, wherein the Legislature is granted the power and authority to enact rules and regulations pertaining to the Chickasaw Nation in accordance with the Constitution.

SEC. 5. A codification of the enactments and other appropriate

legislation of the Chickasaw Nation, through the Chickasaw Tribal Legislature, is hereby adopted as the "Code of the Chickasaw Nation", "Chickasaw Nation Code", "Tribal Code", "Code" or by any other properly identifying designation.

SEC. 6. This code shall be treated and considered as a comprehensive enactment of the Legislature which shall codify all general and permanent enactments enacted by the Legislature prior to October 1, 1992, and provides that all laws enacted on or after October 1, 1992 shall, subsequently, be made a part of the code in accordance with the provisions, herein.

SEC. 7. All provisions of this Code shall be in full force and effect from the date this Act becomes law. The codification of the laws of the Chickasaw Nation is intended to be a recital of those laws within an organized format that provides for proper classification of the laws under specific captions called Titles, Chapters, Sub-chapters, Sections, Sub-sections, Parts and Sub-parts, and other such captions as are customary with a codification, whether specified or not. Inadvertant omission of a law or part of a law into the code which is not in conflict with other laws does not void or repeal that law, but, upon discovery of its omission in the code, shall be inserted into the code without further direction from the Legislature.

SEC. 8. The provisions appearing in this Code, so far as they are the same as those enactments existing as of October 1, 1992, shall be considered as continuations thereof and not as new

enactments.

SEC. 9. The provisions in this Code include, but are not limited to, revised and new provisions or regulations in each of the titles and chapters in the Code.

SEC. 10. Enactments and parts of enactments of a permanent and general nature passed or adopted on and after the effective date of this Code may be passed or adopted either:

(a) in the form of amendments to the Code adopted by this Act; or

(b) without specific reference to the Code.

In either case, all such enactments and parts of enactments shall be deemed amendments to the Code. All of the substantive permanent and general parts of such enactments, and changes, made thereby in the Code, shall be inserted in the Code by the Legislature on at least a semi-annual basis and without further direction by resolution or enactment of the Legislature, or as may otherwise be provided.

SEC. 11. By contract or by the Chickasaw Nation's personnel, a change, or supplement, to the Code adopted by this Act shall be prepared and printed whenever authorized or directed by the Legislature. A change to the Code shall include all substantive permanent and general parts of enactments passed by the Legislature or adopted by initiative and referendum, if any, during the period covered by the change and all changes made thereby in the Code. The pages of a change shall be so numbered that they will fit properly into the Code and, where necessary,

replace pages which have become obsolete or partially obsolete, and new pages shall be so prepared that, when they have been inserted, the Code will be kept up to date. The words "as amended" and the date, may be added to the Title after the year. After every change has been prepared and printed, a number of copies of the change equal to the number of copies on order, or the number of copies of the Code still in existence, shall be deposited in the Office of the Governor. The Governor, or his designee, shall notify each holder of a copy of the original Code about the availability of the change or supplement.

SEC. 12. The Governor, is hereby authorized and directed to sell copies of the Code to the public at a price determined from time to time by the Legislature. The Governor shall include a line item in his annual budget to cover the expense of printing, updating and distribution of the Code. Revenues from the sale of copies of the Code shall be handed over to the Comptroller to be deposited to the General Fund and credited to the budget of the Legislature of the Chickasaw Nation. Such credit shall be computed, quarterly, on the basis of the fiscal year.

SEC. 13. The Tribal Legislature, by approval of a simple majority of the Legislative Committee, may adopt rules and regulations regarding the general maintenance of the codification. A copy of such rules and regulations shall be kept in the Governor's office for public inspection.

SEC. 14. The Code hereby adopted consists of the following

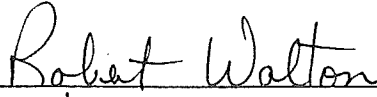
Titles, all of which have been examined, considered and approved by the Chickasaw Tribal Legislature and adopted in compliance with Constitution of the Chickasaw Nation:

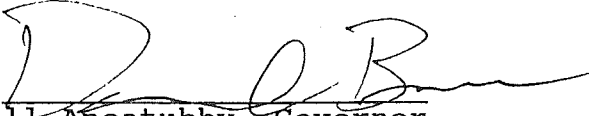
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|--|-----------------------------------|
| 1. General Provisions | 12. The Governor |
| 2. Administration of Tribal Affairs & Government | 13. Health & Social Services |
| 3. Business Organizations, Professions & Licensing | 14. Labor & Employment |
| 4. Community & Economic Development | 15. Lands & Natural Resources |
| 5. The Courts and Procedure | 16. The Legislature & Legislation |
| 6. Domestic Relations & Families | 17. Offenses |
| 7. Education | 18. Real & Personal Property |
| 8. Elections & Campaigns | 19. Safety & Law Enforcement |
| 9. Enterprises (Tribal) | 20. Utilities |
| 10. Finance & Taxation | 21. Vehicles & Highways |
| 11. Fish, Game & Animals | |

SEC. 15. This Act, when adopted, shall be made a part of the Code of the Chickasaw Nation.

Executed by the Chickasaw Tribal Legislature, meeting in Ada, Oklahoma, on June 17, 1994, by a vote of 13 ayes, 0 nays and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Per Bill Anoatubby, Governor,
The Chickasaw Nation

Date: 6-22-94

This legislation, as constitutionally approved, shall be now styled as Tribal Law 11-010.